

Explanation.—The interest of a male Hindu in a Mitakshara coparcenary property or the interest of a member of a *tarwad*, *tavazhi*, *illom*, *kutumba* or *kavaru* in the property of the *tarwad*, *tavazhi*, *illom*, *kutumba* or *kavaru* shall, notwithstanding anything contained in this Act or in any other law for the time being in force, be deemed to be property capable of being disposed of by him or by her within the meaning of this ³[section.]

CHAPTER IV

REPEALS

31. [Repeals.]—*Rep. by the Repealing and Amending Act, 1960 (58 of 1960), s. 2 and the First Schedule (w.e.f. 26-12-1960).*

THE SCHEDULE

(See section 8)

HEIRS IN CLASS I AND CLASS II

Class I

Son; daughter; widow; ⁽²⁾"mother; father; son of a pre-deceased son; daughter of a pre-deceased son; son of a pre-deceased son of a pre-deceased daughter; son of a pre-deceased daughter of a pre-deceased son;"

daughter of a pre-deceased daughter; widow of a pre-deceased son; son of a pre-deceased son of a pre-deceased son; daughter of a pre-deceased son of a pre-deceased son; widow of a pre-deceased son of a pre-deceased son ¹[son of a predeceased daughter of a pre-deceased daughter; daughter of a pre-deceased daughter of a pre-deceased daughter; daughter of a pre-deceased son of a pre-deceased daughter; daughter of a pre-deceased daughter of a pre-deceased son].

⁽²⁾ *Class II*

- I. (1) Brother, (2) sister.
- II. (1) Brother's son, (2) sister's son, (3) brother's daughter, (4) sister's daughter.
- III. Father's father; father's mother.
- IV. Father's widow; brother's widow.
- V. Father's brother; father's sister.
- VI. Mother's father; mother's mother.
- VII. Mother's brother; mother's sister."

1. Added by Act 39 of 2005, s. 7 (w.e.f. 9-9-2005).

2. Substituted as per Hindu Succession (Amendment) Act, 2015